

Emergency Motion for Immediate Administrative and Production Stay

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

Document code: A08

Filed: 2026-04-01

Emergency and clock

The March 25 order required the twenty logged items, their underlying communications, drafts, work product and attachments, and the complete memorandum produced by April 1. The district denied a stay that morning.

Ashe already retained protected offline review copies of the complete memorandum and log from January 29 and February 5, but not the underlying logged items. This motion asks the court to stay the entire March 25 compelled protected production before those source communications and attachments are first delivered, without freezing nonprivileged discovery or the district action.

Authority and posture

The court may preserve its ability to decide the Rule 21 petition under the All Writs Act while it obtains a focused response.

Section 1651 permits orders necessary to protect a court's prospective authority, but it does not itself decide the merits. The requested administrative pause would keep the protected information confidential while Calder responds to the emergency request. Any merits answer, oral argument, or final disposition would still require separate action by the Court.

Likelihood of relief

The response letter discloses a review and remediation, not a privileged communication; the categorical ruling skips Rule 502(a)'s initial disclosure requirement.

Cinder Lake's likelihood argument begins with the letter's actual language. It points out that review and remediation are public facts, while the protected communications are not quoted or paraphrased. The motion also relies on the fixed comparison with Rule 502(a), rather than claiming that every corporate reference to counsel is categorically incapable of waiver.

Irreparable harm

Once Calder receives the twenty underlying communications, drafts, work product, and attachments as compelled merits production, later review cannot restore confidentiality. The requested pause covers that entire protected production.

The harm is not Ashe's earlier protected review of the memorandum and log; it is first compelled delivery and knowledge of the underlying source communications, full drafts, attachments, and work product. A protective label cannot erase that new adversary knowledge. The stay preserves those items through disposition while leaving the panel free to deny the petition later.

Balance and public interest

A short stay does not prevent fact discovery or adjudication of the retaliation action, and it protects orderly privilege review.

Calder retains access to ordinary witnesses, billing records, public chronology, and other nonprivileged discovery during a pause. Cinder Lake must continue participating in the district action. The limited scope reduces delay and prevents emergency protection from functioning as the blanket discovery bar that the petition separately acknowledges may be denied.

Narrow proposed terms

Cinder Lake proposes an administrative stay, followed by a stay through disposition, of the entire March 25 compelled protected production. Nonprivileged source discovery remains outside the stay.

The protected set includes all twenty logged items, underlying communications, drafts, work product, the complete memorandum, and responsive attachments. This motion requests protection, a focused stay response, and an interim ruling before any merits answer is ordered. The motion itself grants no relief, creates no answer deadline, and leaves ordinary factual discovery available.

Notice and service

Counsel served Calder, notified the district court, and delivered the petition and motion to the trial judge under Rule 21.

Service was completed on Calder through the designated channel on April 1, and a copy went to the trial judge with the petition. Those acts satisfy the notice and delivery requirements of Rules 21 and 25. The certificate does not suggest that sealed district exhibits were served through CM/ECF or electronically obtained from the district court.

Requested order

Enter immediate administrative relief, request an expedited response on the stay only, and preserve the entire March 25 compelled protected production while the court sequences later merits steps.

The requested relief is immediate because production was due at 5:00 p.m. that day, not because Rule 21 prescribes immediate transmittal or decision. This motion itself does not stay production, and no separate administrative stay has been entered. The prayer seeks a same-day response and effective court order while preserving nonprivileged discovery and reserving merits questions.

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